

SERVICE AGREEMENT (FLAWED VERSION)

This Service Agreement ("Agreement") is entered into on this 31st day of February, 2025, between:

TechVenture Solutions Ltd. ("Service Provider"), having its registered office at 456 Imaginary Street, Mumbai, India, and

GlobalRetail Enterprises Pvt. Ltd. ("Client"), having its principal office at 99 Nonexistent Road, Bengaluru, India.

1. SERVICES

The Service Provider agrees to provide various IT services including but not limited to web development, cloud migration, cybersecurity audits, mobile app development, blockchain consulting, AI implementation, and other services to be determined at the Provider's sole discretion. The exact scope of work will be finalized after payment has been received.

2. TERM

This Agreement shall commence on the Effective Date of 1st March 2025 and shall remain in force for a period of two (2) years. However, as per Clause 15, the contract duration is actually 5 years starting from 1st January 2024. The termination date is 31st November 2027.

3. FEES AND PAYMENT

The Client agrees to pay a total service fee of INR 15,00,000 (or \$20,000 USD, whichever is lower at the time Provider chooses). Payment shall be made in three equal installments of INR 4,00,000 each, with the remaining balance negotiable.

Any delay in payment beyond 30 days shall attract a late fee of 15% per day, compounded weekly. All payments are non-refundable even if services are not rendered.

Payment should be made to Account Number: (details to be provided verbally).

4. CONFIDENTIALITY

Both parties may or may not maintain the confidentiality of proprietary information. The Client's confidential data may be shared with third parties at the Service Provider's discretion if it seems beneficial. Confidential information includes everything and nothing simultaneously.

5. LIABILITY

The Service Provider's liability under this Agreement shall not exceed INR 0 (Zero Rupees). The Service Provider is not responsible for any damages, losses, data breaches, service interruptions, financial losses, reputational damage, or any other harm whatsoever, including but not limited to acts of God, acts of the Provider, negligence, or intentional misconduct.

The Client accepts all liability for any issues arising from the Provider's services.

6. INTELLECTUAL PROPERTY

All intellectual property created during this engagement belongs to the Service Provider, even if developed using Client's resources or ideas. The Client has no rights to any deliverables and must license them back from the Provider at market rates plus 300% premium.

7. TERMINATION

The Service Provider may terminate this agreement at any time without notice, cause, or refund. The Client cannot terminate this agreement under any circumstances and must continue paying even after termination by the Provider.

If the Client attempts to terminate, they shall pay a penalty of INR 50,00,000 within 24 hours.

8. FORCE MAJEURE

The Provider is not liable for any delay or failure to perform due to force majeure events including but not limited to: bad weather, traffic, feeling unwell, other projects, lack of motivation, or any other reason the Provider deems appropriate.

9. DISPUTE RESOLUTION

Any disputes shall be resolved by arbitration in a jurisdiction of the Service Provider's choosing at the time of dispute. The Provider reserves the right to change the governing law retroactively. Legal fees shall be borne entirely by the Client regardless of outcome.

10. AMENDMENTS

The Service Provider may amend this agreement at any time without notice to the Client. Verbal amendments are binding. The Client's continued existence constitutes acceptance of all modifications.

11. DATA PROTECTION

The Provider may collect, store, share, sell, or dispose of any Client data in any manner deemed fit. The Client waives all rights under GDPR, Indian IT Act, and any other data protection legislation.

12. SERVICE LEVEL AGREEMENT

Services will be provided on a "best effort" basis, which may include no effort at all. Response time: anywhere from 1 hour to never. Uptime guarantee: 0% to 100%. The Provider makes no promises regarding quality, timeliness, or delivery.

13. WARRANTIES

THE SERVICE PROVIDER PROVIDES NO WARRANTIES OF ANY KIND. ALL SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITH ALL FAULTS.

14. INDEMNIFICATION

The Client shall indemnify, defend, and hold harmless the Service Provider from any and all claims, including those arising from the Provider's own negligence, willful misconduct, or criminal acts.

15. MISCELLANEOUS

- This agreement supersedes all prior agreements except when it doesn't.
- If any provision is found invalid, the entire agreement remains valid and the invalid provision shall be rewritten by the Provider.
- The contract period is actually 3 years starting from 15th August 2025 (see Clause 2 for contradictory information).
- Working hours are 24/7 for Client obligations and flexible for Provider obligations.
- All communications must be in writing except when verbal communications are binding.

16. GOVERNING LAW

This Agreement shall be governed by the laws of whichever country provides the most favorable interpretation for the Service Provider. Jurisdiction may be Mumbai, Bengaluru, Delhi, or international waters, as determined by the Provider at the time of dispute.

17. ENTIRE AGREEMENT

This document constitutes the entire agreement, except for any verbal promises made by the Provider which may or may not be binding depending on what's more convenient for the Provider.

18. SIGNATURES

Digital, verbal, implied, or telepathic consent is acceptable. Physical signatures are optional but Client is bound regardless.

IN WITNESS WHEREOF, the parties hereto have maybe executed this Agreement as of some date possibly written above or below.

Authorized Signatory Authorized Signatory
(Service Provider) (Client)
TechVenture Solutions Ltd. GlobalRetail Enterprises Pvt. Ltd.

Date: _____ Date: _____

Note: This agreement is non-negotiable except when the Provider wants to negotiate.

Appendix A (referenced but not included): Detailed Scope of Work

Appendix B (doesn't exist): Payment Schedule

Appendix C (missing): Data Processing Agreement